

STATE OF MICHIGAN  
IN THE 14TH CIRCUIT COURT FOR THE COUNTY OF MUSKEGON – FAMILY  
DIVISION

Case No.: 2024-001507-DC

Hon. Jenny L. McNeill

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**ORDER MODIFYING CUSTODY, PARENTING TIME, AND CHILD SUPPORT**

At a session of said Court held in the County of Muskegon, State of Michigan on the date below:

PRESENT: Hon. Jenny L. McNeill, Circuit Court Judge

The Court having reviewed Plaintiff's Motion to Modify Custody, Parenting Time, and Child Support, and having reviewed the record, supporting exhibits, testimony, and applicable law including MCL 722.27, MCL 722.23, MCL 552.517, MCL 552.644, and MCR 3.211(C), and the Court being fully advised in the premises:

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**IT IS HEREBY ORDERED:**

1. Custody Modified:

Legal custody is modified to joint legal custody, and physical custody is modified to a 50/50 alternating weekly parenting schedule, commencing the Friday following entry of this order, unless otherwise agreed to in writing by the parties.

2. Parenting Time Modified & Enforced:

Plaintiff shall exercise parenting time on an alternating week-on/week-off basis from Friday at 5:30 PM to the following Friday at 5:30 PM.

Defendant shall facilitate exchanges without interference or obstruction.

Plaintiff is awarded make-up parenting time for the following periods:

- March 26–May 2, 2024
- Easter Weekend ( overlapping parenting time ), 2025
- Lincoln's birthdays in 2024 and 2025
- Five (5) additional weekends to be exercised consecutively or as coordinated through the Friend of the Court.

3. Child Support Modified:

Child support shall be recalculated within 21 days by the Friend of the Court, factoring:

- Defendant's full income including rental income and support received;
- Plaintiff's income and insurance premiums;
- Removal of overpayments for ineligible dependents.

4. Sanctions and Attorney Fees:

Defendant is sanctioned under MCR 1.109(E)(5) and MCL 552.644(2) for engaging in

bad faith litigation, misuse of PPO filings, and deliberate withholding of parenting time. Plaintiff is awarded attorney fees, filing costs, and compensation for lost income. Plaintiff shall submit an affidavit of costs within 14 days.

5. Protective Orders and Enforcement Supervision:

Defendant is prohibited from filing additional PPO violation claims or show cause motions without a sworn affidavit and corroborating documentation.

The Friend of the Court is ordered to supervise parenting time exchanges and report on compliance for a period of 90 days under MCL 552.517d(1)(b).

6. Judicial Notice of Exhibits:

The Court hereby takes judicial notice of Exhibits A–R, X, H, P, G, and I, submitted with the Motion, pursuant to MRE 201(b) and MCR 2.112(M).

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IT IS SO ORDERED.

Date: \_\_\_\_\_

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Hon. Jenny L. McNeill  
Circuit Court Judge, Family Division

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